

24PSCV02104 24PSCV02104

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Case Number: 24PSCV02104 Hearing Date: June 30, 2026 Dept: H

Lanuza, et al. v. Amazon.com,
Inc., Case No. 24PSCV02104

ORDER ON MOTION TO COMPEL PSYCHIATRIC EXAMINATION

Defendants Amazon.com Services,
LLC and Amazon Logistics, Inc.'s Motion for Leave of Court to Compel Plaintiff
Aura Lanuza to Submit to Psychiatric Examination by Dr. Rosenberg is GRANTED.

Background

Plaintiffs

Aura Lanuza ("Aura") and Ligia Lanuza ("Ligia") (together, "Plaintiffs") allege
as follows:

On

May 14, 2024, Aura was walking Ligia's dog at or near the intersection of High
Knob Road and Golden Springs Drive in Diamond Bar when they were hit by a 2020
Ford Transit driven by Justin Andrew Lozano ("Lozano").

On July 1, 2024, Plaintiffs filed a complaint,
asserting causes of action against Amazon.com, Inc., Amazon.com Services LLC,
Amazon Logistics, Inc., DXS Logistics LLC ("DXS"), Gelco Fleet Trust ("Gelco"),
Lozano, and Does 1-100 for: (1) Negligence—by Aura Lanuza Individually and (2) Negligence—by
Ligia Lanuza Individually.

On August 20, 2024, Plaintiffs filed an "Amendment

to Complaint,” wherein Chocolate Enterprises, LLC (“Chocolate”) was substituted in lieu of Doe 1.

On April 11, 2025, Plaintiffs dismissed Gelco, Amazon.com, Inc., and DXS, without prejudice.

The Final Status Conference is set for January 12, 2027. Trial is set for January 26, 2027.

Legal
Standard

A party must obtain leave of court if the party desires to obtain discovery by a mental examination. (Code Civ. Proc., § 2032.310, subd. (a).) Section 2032.310, subdivision (b) provides that the motion “shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” A meet and confer declaration must also accompany the motion. (Code Civ. Proc., § 2032.310, subd. (b).) For a motion compelling mental examination to be granted, there must be a showing of “good cause.” (Code Civ. Proc., § 2032.320, subd. (a).)

An order granting a mental examination must specify “the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Code Civ. Proc., § 2032.320, subd. (d).)

Discussion

Amazon.com Services LLC and Amazon Logistics, Inc. (hereinafter together, “Amazon”) move the Court for an order, pursuant to Code of Civil Procedure section 2032.310, to compel Plaintiff to submit to a further examination in the form of a psychiatric examination with James F. Rosenberg, M.D. (“Rosenberg”), a psychiatrist.

Amazon’s counsel Tiffany Steward (“Steward”) represents, and/or the accompanying exhibits reflect, as follows:

On

July 14, 2025, Chocolate served

a “Demand for Independent Medical Examination of Plaintiff Aura Lanuza with Edwin C. Amos, MD.” (Steward Decl., ¶ 7, Exh. C.) Although Aura served written objections to same on August 7, 2025, she thereafter attended the neurological examination as demanded. (Id., ¶¶ 8 and 9, Exh. D.) On August 27, 2025, Chocolate served a “Second Amended Demand for Independent Medical Examination of Plaintiff Aura Lanuza with Nicholas S. Thaler, PhD, ABPP-Cn.” (Id., ¶ 10, Exh. E.) Aura served written objections to same on August 27, 2025, but attended the neuro-psychologic examination as demanded. (Id., ¶¶ 11 and 12, Exh. F.)

On

January 22, 2026, Chocolate served a “Demand for Independent Medical Examination of Plaintiff Aura Lanuza with James F. Rosenberg, MD.” (Id., ¶ 13, Exh. G.) On January 27, 2026, Plaintiff’s counsel Alec Clark emailed counsel for Chocolate and Amazon, stating that he saw the examination as “highly cumulative” of the prior examinations. (Id., ¶ 14, Exh. J.) On January 27, 2026, Amazon’s counsel Kimberly Oberrecht responded, stating that the exams involved different specialties. (Id., ¶ 15, Exh. K.) On February 17, 2026, Aura served an “Objection to Demand for Independent Medical Examination of Plaintiff with James F. Rosenberg, M.D.” (Id., ¶ 16, Exh. H.) On February 19, 2026, Chocolate’s counsel sent an email to all parties. (Id., ¶ 17, Exh. L.) On March 3, 2026, Amazon served a “Joinder to Defendant Chocolate Enterprises, LLC’s Demand for Independent Medical Examination of Plaintiff Aura Lanuza with James F. Rosenberg, M.D.” (Id., ¶ 18, Exh. I.) Amazon did not receive a further response from Plaintiffs and since learned that Aura did not attend the psychiatric examination with Rosenberg. (Id., ¶ 19.) On May 27, 2026, Amazon served a renewed “Demand for Independent Medical Examination/Interview of Plaintiff Aura Lanuza with James Rosenberg, MD.” (Id., ¶ 20, Exh. B.) On May 27, 2026, Amazon served and filed a Request for Informal Discovery Hearing. (Id., ¶ 24.) This motion followed, on May 29, 2026.

As an

initial matter, the Court notes that, while an Informal Discovery Conference was set for June 15, 2026, the hearing date was subsequently vacated as the Court was then engaged in jury trial.

The parties

agree that Aura has placed her mental state in controversy in this action. Aura,

in response to Form Interrogatory No. 6.2, claims that she “suffered severe, pervasive, and permanent injuries” as a result of the subject incident, including the following “SKULL/BRAIN/PSYCHOLOGICAL/ NEUROLOGICAL” injuries:

Traumatic

brain injury with sequelae including but not limited to, oculomotor apraxia, dizziness, nausea, vomiting, migraine, headaches, Somnolence, difficulty walking, impulsiveness, depression, adjustment disorder with anxiety, ADL assistance includes supervision and occasional aid while grooming, dressing, toileting, and showering, cleaning her household, meal preparation, She experiences impaired/deficit of memory, attention, concentration, balance, psychomotor function, frontal lobe and executive function, visuospatial tracking, visuconstruction, and motor/processing speed;

Loss

of sense of smell which causes her a great deal of anxiety due to safety concerns (e.g. unable to smell gas, food spoilage, self, etc.).

Multifocal

hemorrhagic contusions and subarachnoid hemorrhage;

Diffuse

cerebral edema with mild uncal herniation;

Left

frontal and right occipital skull fractures and substantial bilateral bruising on eyes; and

Inconsistent

sleep pattern.”

(Steward

Decl., ¶ 6, Exh. A.)

The

Court determines that Amazon has shown good cause for the proposed mental examination. “Generally, ‘good cause’ is made out by showing (a) that the exam is “relevant to the subject matter” and (b) specific facts warranting discovery—i.e., allegations establishing need for the information sought and lack of means for obtaining it elsewhere.” Haning, Flahavan, Cheng

and Wright, CAL. PRAC. GUIDE: PERS. INJ. (The Rutter Group Sept. 2025) ¶ 6:347, citing *Vinson v. Sup. Ct. (Peralta Comm. College Dist.)* (1987) 43 Cal.3d 833, 840 and *Bittle v. Sup. Ct. (Echeverria)* (1976) 55 Cal.App.3d 489, 496. “Nowhere does the Legislature specifically limit the number of available examinations, either mental or physical. The authoritative discovery commentators agree that multiple defense examinations are permitted on the necessary showing of good cause.” (*Shapira v. Superior Court* (1990) 224 Cal.App.3d 1249, 1255 [citations omitted].)

Aura

asserts that the proposed examination by Rosenberg is duplicative of that conducted by Thaler. Amazon, however, explains that, while there is “undoubtedly some overlap within the evaluations performed by psychiatrists and neuropsychologists as both are assessing Plaintiff’s mental state,” Thaler’s examination focused on neurologic disorders like memory, attention and executive processing whereas a psychiatric examination focuses on mental and emotional illnesses. (Reply, 2:17-20 and 4:1-3.) Amazon further explains that the proposed examination by Rosenberg would be limited to a 3-hour clinical interview of a variety of topics identified in the demand, in recognition of the fact that neuropsychologic testing had already been completed. (*Id.*, 2:22-24 and 3:19-20.)

The

motion is granted.